

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR DECEMBER 31, 2025
DEPARTMENT 38
JUDICIAL OFFICER: MARK SCHMUCK

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE TEMPORARY JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

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1. **MSP21-01789 CONSERVATORSHIP OF RONALD COCHRAN**
9:00 AM HEARING IN RE: PETITION FOR APPROVAL OF THE SECOND ACCOUNT; FEES AND COSTS FILED ON
10/21/25 BY RONALD COCHRAN

Need:

1. Appearances
2. Verified declaration in support of attorney's fees for attorney Rifbjerg.
Statement showing services rendered, hours and rates charged so ct. can
evaluate attorney fees reported. LR 7.450
3. Proposed Order

The Court is waiting for these items:

- A. Court Investigator's Report

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2. **P25-01488** **CONSERVATORSHIP OF: CARMEN MALFITANO**
9:00 AM HEARING IN RE: PETITION FOR APPOINTMENT OF CONSERVATOR OF THE PERSON AND ESTATE FILED
ON 08/21/25 BY GRACE MALFITANO

Need:

1. Appearances to report status, including mediation
2. Return of citation or waiver by counsel. PrC § 1824
3. Confidential Capacity Assessment and Declaration (Judicial Council Form GC-335) to show whether proposed conservatee lacks capacity to give informed medical consent. PrC § 1890
4. Doctor's declaration regarding proposed conservatee's inability to attend the hearing
5. Verified declaration by petitioner to clarify that you have attended the orientation class for unlicensed conservators pursuant to LR 7.416

The Court is waiting for these items:

- A. Report from attorney Davis Pierson

Notes:

- a. Letters of Temporary Conservatorship, Person and Estate, expire 05/22/26
- b. Objection filed 10/20/25 by Mike Malfitano

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3. **P25-01924 LIMITED CONSERVATORSHIP OF:MAX CHAN**
9:00 AM HEARING IN RE: PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON (LIMITED CONSERVATORSHIP) FILED ON 10/27/2025 BY LOUIS CHAN AND AI CHEN TAO

Need:

1. Appearances
2. Verified declaration by petitioner to clarify that you have attended the orientation class for unlicensed conservators pursuant to LR 7.416
3. Proposed Order

The Court is waiting for these items:

- A. Court Investigator's Report
- B. Report from attorney Sepehr

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4. 9:00 AM	P25-01949 LIMITED CONSERVATORSHIP OF: JIBRIL MANSUR HEARING IN RE: PETITION FOR APPOINTMENT OF CONSERVATOR OF THE PERSON FILED BY SAJI MANSUR ON 10/31/25 PETITION FOR APPOINTMENT OF CONSERVATOR - PERSON Petitioner still must do the following: 1. Appear at the hearing 2. Have a copy of the Petition and Notice of Hearing mailed to all relatives, and to Regional Center, and file the completed Notice of Hearing 3. Have the Confidential Capacity Assessment and Declaration completed by proposed conservatee's doctor, and file it (Judicial Council Form GC-335) to show whether proposed conservatee lacks capacity to give informed medical consent. PrC § 1890 4. Verified declaration by petitioner to clarify that you have attended the orientation class for unlicensed conservators pursuant to LR 7.416 5. Have a copy of the Citation Form GC-320 personally served on conservatee or waiver by counsel. File the original with the Clerk of the Court with Proof of Service completed by server. The Court is waiting for these items: A. Court Investigator's Report B. Assessment from Regional Center. PrC § 1827.5; WIC § 4620.
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5. 9:05 AM	P25-01606 ESTATE OF DEBORAH JOHNSON HEARING IN RE: PETITION FOR PROBATE OF LOST WILL & FOR LETTERS TESTAMENTARY FILED ON 9-11-25 BY SHANIECE COOPER PETITION FOR PROBATE OF WILL FILED Petitioner still must do the following: 1. Appear at the hearing 2. File a verified declaration to include the names, addresses, and relationships of heirs to complete the list at Petition item 8. 3. File a verified declaration to clarify whether or not decedent had a predeceased spouse. Petition item 5.a (2) (b) says that she did, but item 7.a says that she did not. 4. File a verified declaration to add deceased spouse with date of death to petition Item # 8, if needed per above. LR 7.151(d) 5. Have a Notice of Petition to Administer Estate Form DE-121 and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court. PrC § 8100; LR 7.151(e) 6. Have Notice of Petition to Administer Estate DE-121 published and file proof of publication with the Court. PrC § 8120 7. File a verified declaration to address petition Item # 5.a.(3) or 5.a.(4) (whether decedent is survived by a registered domestic partner) 8. File a verified declaration to address petition Item # 5.a.(7) or 5.a.(8) (whether decedent is survived by issue of a predeceased child) 9. File a verified declaration to complete Petition item 2.d regarding Bond 10. File a verified declaration to complete Petition item 3.e, if needed per above 11. File a verified declaration to include a copy of the will. 12. Lodge Original Will (w/legal process). PrC § 8200 If Original Will cannot be found, will also need; 13. Evidence to overcome presumption of revocation by the fact that the originals cannot be located. PrC § 6124 14. Proof of mailing notice that will/codicil is lost. PrC § 1202 15. Proof of Subscribing Witness Form DE-131. PrC § 8220. 16. Proposed Order for Probate Form DE-140 with copy of Will attached, if lost will is to be admitted 17. Need further evidence to overcome presumption of revocation. PrC § 6124 Notes: a. Complaint for Damages, Return Funds, Amend Death Certificate, and Forgery filed 10/20/25 by ShaNiece Cooper, set 03/12/2026
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6. **P25-01620** **IN RE: MATTER OF THE UTMA ACCOUNT FOR MATTHEW FRANK BRUNO**
9:05 AM HEARING IN RE: PETITION TO APPOINT SUCCESSOR CUSTODIAN OF UTMA ACCOUNT FILED ON 9-11-
25 BY BECKY A BRUNO

Need:

1. Appearances
2. Proposed Order

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7. 9:05 AM	P25-01665 ESTATE OF: VIRGINIA ROSEN HEARING IN RE: PETITION FOR PROBATE OF WILL & LETTERS OF TESTAMENTARY FILED ON 9-18-25 BY HEATHER GARROLD Need: 1. Proof of mailing Notice of Petition to Administer Estate and copy of petition to all heirs and beneficiaries. PrC § 8110; LR 7.151(e)
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8A. **P25-01804** **ESTATE OF: CAROLE O'DELL**
9:00 AM HEARING IN RE: MOTION FOR LEAVE TO FILE A CONFIDENTIAL SETTLEMENT AGREEMENT UNDER
SEAL FILED BY HUONG VAN LE ON 10/13/2025

Need appearances

8B. **P25-01804** **ESTATE OF: CAROLE O'DELL**
9:00 AM HEARING IN RE: PETITION FOR APPROVAL OF CONFIDENTIAL MUTUAL RELEASE AND SETTLEMENT
AGREEMENT FILED BY HUONG VAN LE ON 10/13/2025

Need:

1. Appearances
2. Petition verified. PrC § 1021. CCP § 2015.5. CRC 7.103
3. Verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.112
4. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. Notice of Hearing filed 10-28-2025 reflects the 2-26-2026 hearing date.

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8C.

9:00 AM

P25-01804

ESTATE OF: CAROLE O'DELL

HEARING IN RE: PETITION FOR PROBATE OF WILL FILED 10/09/25 BY HUONG VAN LE

Need:

1. Appearances
2. Verified declaration by petitioner to include page 4 of petition. Copy attached to petition is partially illegible.
3. Verified declaration by petitioner to include current address of Virginia O'Dell or verified declaration by petitioner showing diligent efforts made to locate and serve her. CRC 7.52
4. Verified declaration by petitioner to complete petition item # 3h(3) or 3h(4) (whether proposed personal representative is a U.S. resident)
5. Verified declaration by petitioner to state relationships of persons listed in Item # 8. PrC § 8002
6. Verified declaration by petitioner to address petition Item # 5.a.(3) or 5.a.(4) (whether decedent is survived by a registered domestic partner)
7. Verified declaration by petitioner to address petition Item # 5.a.(7) or 5.a.(8) (whether decedent is survived by issue of a predeceased child)
8. Verified declaration by petitioner to add deceased spouse with date of death to petition Item # 8. LR 7.151(d)
9. Proof of mailing Notice of Petition to Administer Estate and copy of petition to Virginia O'Dell. PrC § 8110; LR 7.151(e)
10. Verified declaration by petitioner to include Attachment 3.f.(2) (copy of will), not attached as indicated. PrC § 8002

Note: Notice of Conditional Settlement filed 10-9-2025.